

renewal, and that the others should receive the full amount of their annuities without any deduction?" (a)

13. **Terms of assignment by the trustee.**—In making the assignment to the *cestui que trust* the trustee will also be indemnified against the personal covenants which he entered into with the lessor (b); and on his own part must clear the lease of all incumbrances created by himself, except underleases at rack-rent (c).

14. **Accounting for mesne rents and profits.**—The trustee must also account to the *cestui que trust* for the *mesne* rents and profits which he has received from the estate (d), and also for any sub-fines that may have been paid to him by underlessees (e). And the *cestui que trust*, though the lease which was the ground of his equity has since actually expired, may still call for an account of the rents and profits (f). In the case of a renewal by tenant for life, the account will of course be restricted to the period since the tenant for life's decease (g):

15. **Remedy against purchasers and others claiming under the leasee.**—The *cestui que trust* may pursue his remedy not only against the original trustee, executor, or tenant for life, and volunteers claiming through them (h); but also against a purchaser, with notice express or implied of the plaintiff's title (i); and a purchaser will be deemed to have had notice if the lease assigned to him recited the surrender of a former lease, which recited the surrender of a previous lease, in which mention was made of the settlement under which the *cestui que trust* claims (j); and the volunteer or purchaser with notice

(a) *Stubbs v. Roth*, 2 B. & B. 548.

(b) *Giddings v. Giddings*, 3 Russ. 241; *Keech v. Sandford*, Sel. Ch. Ca. 61.

(c) *Bowles v. Stewart*, 1 Sch. & Lef. 209, see 230.

(d) *Giddings v. Giddings*, *Keech v. Sanford*, *ubi supra*; *Mulvany v. Dillon*, 1 B. & B. 409; *Walley v. Walley*, 1 Vern. 484; *Luckin v. Rushworth*, Finch. 392; *Blewett v. Millett*, 7 B. P. C. 367.

(e) *Rawe v. Chichester*, Amb. 715, see 720.

(f) *Eyre v. Dolphin*, 2 B. & B. 290.

(g) *James v. Dean*, 11 Ves. 383, see 396; *Giddings v. Giddings*, 3 Russ. 241.

(h) *Bowles v. Stewart*, 1 Sch. & Lef. 209; *Eyre v. Dolphin*, 2 B. & B. 290; *Blewett v. Millett*, 7 B. P. C. 367.

(i) *Coppin v. Fernyhough*, 2 B. C. C. 291; *Walley v. Walley*, 1 Vern. 484; *Eyre v. Dolphin*, 2 B. & B. 290; *Stratton v. Murphy*, 1 Ir. Rep. Eq. 346.

(j) *Coppin v. Fernyhough*, 2 B. C. C. 291; *Hodgkinson v. Cooper*, 9 Beav. 304.